

Amendment No. 2 to HB0713

Bricken
Signature of Sponsor

AMEND Senate Bill No. 715*

House Bill No. 713

deleting SECTION 2 and substituting the following:

SECTION 2. Tennessee Code Annotated, Section 46-1-204, is amended by deleting subsection (c) and substituting:

(c) A cemetery company may charge a fee for the memorial care of every commodity installed in the cemetery. The fee must not exceed seventy-five cents (75¢) per square inch of the ground covered by the commodity. At the end of each calendar year, the cemetery company may increase the fee charged pursuant to this subsection (c) for the memorial care of commodities by no more than the percentage representing the consumer price index at the end of that calendar year. The fee charged for memorial care of a commodity must not exceed the fee charged by the cemetery company for installation of the commodity. A cemetery company must not charge a different memorial care fee based on the source of the commodity.

AND FURTHER AMEND by deleting SECTION 3 and substituting the following:

SECTION 3. Tennessee Code Annotated, Section 46-2-101(b)(2), is amended by deleting the subdivision and substituting the following:

(2)

(A) A cemetery company may prohibit the installation of a commodity by noncemetery personnel; provided, that the fee charged by the cemetery company for installation of the commodity by the cemetery company does not exceed seventy-five cents (75¢) per square inch of the ground covered by the commodity. At the end of each calendar year, the cemetery company may

increase the fee charged pursuant to this subdivision (b)(2)(A) for the installation of commodities by no more than the percentage representing the consumer price index at the end of that calendar year. A cemetery company must not charge a different installation fee based on the source of the commodity. The cemetery company shall install all commodities furnished from sources other than the cemetery within thirty (30) days of the receipt of the commodity, weather permitting.

(B) If the fee charged by a cemetery company for installation of a commodity exceeds the fee scale described in subdivision (b)(2)(A), then the cemetery company shall permit installation of the commodity by noncemetery personnel, if requested by the interment right owner, or the owner's representative, agent, heirs, or assigns.

AND FURTHER AMEND by adding a new section immediately before the effective date section and renumbering the effective date section accordingly:

SECTION __. Tennessee Code Annotated, Section 46-2-101(b)(1), is amended by deleting "a lot owner" and substituting "the interment right owner".